

See also: The Geneva Conventions 152–155 ■ The Hague Conventions 174–177 ■ The Genocide Convention 210–211
 ■ The United Nations and International Court of Justice 212–219 ■ The Universal Declaration of Human Rights 222–229

British prime minister Winston Churchill, and Soviet premier Joseph Stalin; it determined to return Germans to the scene of their crimes, judge them, and punish the guilty appropriately.

Trial or execution?

While Churchill was in favor of summarily shooting the high-ranking officers to avoid what he believed would turn out to be a show trial, the Russians were eager to do things right. Churchill wrote, “U. J. [“Uncle Joe”, meaning Stalin] took an unexpectedly ultra-respectable line. There must be no executions without trial; otherwise, the world would say we were afraid to try them.”

After Roosevelt’s death in April 1945, the Americans came to agree with the Russians, and US assistant secretary of war John McCloy expressed surprise that the British would object. In the end, the British agreed, and a site was chosen for the leading figures to be tried in Nuremberg, both for its good court and prison facilities

and because Hitler had held his largest rallies there, which gave a symbolic power to the process of punishing his regime for the atrocities it committed.

New court, new crimes

The court was set up as an International Military Tribunal under the London Charter that was signed on August 8, 1945, by the four leading Allies—the US, UK, Soviet Union (USSR), and France. Although there would be no jury, there was to be equal national representation among the judges and prosecution. The US and UK prosecutors Robert H. Jackson and Sir Hartley Shawcross would achieve prominence through their relentless cross-examination of the accused. The defense was largely in the hands of German lawyers.

At each of the 13 trials, judges, prosecutors, and defendants spoke four different languages: English, French, German, and Russian. Translating everything four ways in writing would have dramatically slowed proceedings, so for the first

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[The Nazis] have been given the kind of a trial which they, in the days of their pomp and power, never gave to any man.

Robert H. Jackson

Summation for the prosecution,

July 26, 1946

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time, the trials were conducted in four languages with simultaneous translations transmitted through headphones to all participants.

Each interpreter had to translate into their target language in real time. That meant for each of the four languages, there had to be one interpreter for each of the other three languages. The stress on interpreters relaying instantly »



Robert H. Jackson

Born on a farm in Pennsylvania in 1892 and raised in New York, Robert H. Jackson grew up to become one of the most famous US Supreme Court justices in history and an ardent defender of the rule of law against the overreach of federal agencies. He was one of the last people to serve on the Supreme Court without having a law degree. Before joining the Supreme Court, he also, uniquely, held the posts of both US solicitor general and US attorney general.

As a Supreme Court justice, Jackson objected to the wartime internment of Japanese Americans and to segregation but ruled that communist plotters were not afforded protection by the constitutional right to freedom of speech and movement. Jackson is best known for his role as the chief US prosecutor at the Nuremberg trials, where his incisive style of questioning made a huge impact. He died in 1954 in Washington, DC.